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File No.: EXP202307762

## RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by Ms. A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated November 6, 2023, based on the following

### FACTS

FIRST: On November 6, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202307762, in which it was agreed to uphold the claim for the exercise of rights made by Ms. A.A.A. against Dr. B.B.B.

SECOND: The resolution now appealed was duly notified to the appellant on November 6, 2023, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant submitted on November 22, 2023, a reconsideration appeal to this Spanish Agency for Data Protection, stating that the period granted for the Clínica Dr. J. M. López-Ibor, S.L., to send her medical history has elapsed, and requests "(...) that the pertinent claims be made."

### LEGAL GROUNDS

I

#### Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

#### Conclusion

Upon examining the reconsideration appeal submitted by the appellant, it is observed that her intention is not to challenge the resolution issued by the Director, but to communicate that the entity against which she filed a complaint has not complied with the provisions of said resolution.

In other words, her intention is for the Agency to require compliance or to continue the necessary actions to ensure her right is addressed.

Consequently, since the appellant does not provide new facts or legal arguments that would allow for a reconsideration of the validity of the challenged resolution, it is appropriate to agree to its dismissal, noting that the Agency will proceed to require the compliance from the complained party.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the reconsideration appeal filed by Ms. A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on November 6, 2023, in file EXP202307762.

SECOND: TO NOTIFY this resolution to Ms. A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of the aforementioned legal text.

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Director of the Spanish Agency for Data Protection

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